

		Defendant also requests appointment of a referee to supervise the deposition process. While there has been a lot of letter writing between counsel, there is insufficient evidence to warrant a referee. The court does not find "exceptional circumstances" exist based on the record submitted. (<i>Rule 3.920(c)</i>.) Accordingly, the request for a referee is DENIED. The requests by both parties for sanctions are DENIED. The court finds that under the circumstances, imposition of sanctions would be unjust. (<i>Code of Civil Procedure §2025.420(h)</i>.) <i>Counsel for plaintiff is ordered to give notice.</i>
7.	Kumar v. Children's Hospital of Orange County 23-1361438	Before the Court at present is the Motion to Set Preferential Trial Date, filed on 6/3/26 by Plaintiff Arjun Kumar, a minor, by and through his Guardian Ad Litem, Pavan Kumar ("Plaintiff"). The Motion demonstrates grounds for trial priority under <i>C.C.P. § 36(b)</i> and asks here to confirm priority for the existing 4/19/27 trial date. That date comports with the requirements of <i>C.C.P. § 36(g)</i>. The Court therefore GRANTS the Motion, to provide priority in accordance with <i>C.C.P. § 36(b)</i> and (<i>g</i>) for the 4/19/27 trial date. <i>Counsel for Plaintiff is to give notice.</i>
8.	Medina v. Unilogic Healthcare Management LLC 26-1554435	Before the Court is a motion to compel arbitration and stay proceedings filed by defendant Unilogic Healthcare Management LLC (Defendant) against plaintiff Leslie Medina (Plaintiff). For the reasons set forth below, the motion is GRANTED, subject to severance of the cost-splitting provision. On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court must grant the petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for rescission of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (<i>Code of Civ. Proc. § 1281.2</i>.) Here, Defendant met its burden to show a written arbitration agreement exists between the parties. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 [burden]; Declaration of Maggie Nava ("Nava Decl.") ¶¶ 3, 4, Ex. B.) The burden shifted to Plaintiff to demonstrate the agreement is unenforceable. (<i>Little v. Pullman</i> (2013) 219 Cal.App.4th 558, 565.) Plaintiff argues the arbitration agreement is unconscionable. Where the court determines, as a matter of law, that a contract or any provision in the contract is unconscionable at the time it was made, the court may refuse to enforce the contract or clause or may limit the application of the clause to avoid an unconscionable result. (<i>Civ. Code § 1670.5</i>.) The doctrine has "both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal

bargaining power, the latter on overly harsh or one-sided results.” (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 114.) “A sliding scale is applied so that the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (*Serafin v. Balco Properties, Ltd., LLC* (2015) 235 Cal.App.4th 165, 178.)

Other than pointing to Defendant’s evidence showing Plaintiff signed the agreement as part of Defendant’s onboarding process, Plaintiff failed to present any evidence showing any circumstances of oppression or surprise – not even her own declaration. Given minimal procedural unconscionability, Plaintiff must demonstrate significant substantive unconscionability. Plaintiff points to two provisions as substantively unconscionable: (1) the arbitration cost-splitting provision in paragraph 10; and (2) remedies provision in paragraph 7.

Cost-splitting provision: “[W]hen an employer imposes mandatory arbitration as a condition of employment, the arbitration agreement or arbitration process cannot generally require the employee to bear any type of expense that the employee would not be required to bear if he or she were free to bring the action in court.” (*Armendariz, supra*, 24 Cal.4th at 110-111.) A provision requiring each party to bear its own attorney fees, thereby impliedly waiving the employee’s right to statutory fees, is substantively unconscionable. (*Serafin v. Balco Properties, Ltd., LLC* (2015) 235 Cal.App.4th 165, 184-185.) To the extent paragraph 10 seeks to impose arbitration-specific costs to Plaintiff, including language regarding the employees’ financial representations and warranties and the parties’ option to terminate arbitration based on the arbitrator’s ruling on fees/costs, the Court finds paragraph 10 substantively unconscionable. (Nava Decl., Ex. B at p. 68 ¶ 10.)

Remedies provision: An arbitration agreement that fails to provide for all types of relief that would be available in court is substantively unconscionable. (*Armendariz, supra*, 24 Cal.4th at 116.) Here, paragraph 7 appears to restrict an award of punitive damages and attorney fees but contains clear language that such remedies are available where “statutorily allowed.” (Nava Decl., Ex. B at p. 68 ¶ 7.) This provision does not restrict Plaintiff’s ability to obtain attorney fees under *Government Code section 12965, subdivision (b)* and *Labor Code sections 218.5, 226 and 1194*, and punitive damages under *Civil Code section 3294*, as she contends. The Court finds paragraph 7 is not substantively unconscionable.

Severance: To assess whether unconscionable terms may be severed, a court considers whether the unconscionable provision is “central” or “collateral” to the purpose of the contract. “The overarching inquiry is whether the interests of justice would be furthered by severance.” (*Armendariz v. Foundation Health Psychcare Services, Inc., supra*, 24 Cal.4th at 123-124.) Here, the Court finds the central purpose of the arbitration agreement is mutual and binding arbitration of employment disputes before a neutral arbitrator, which is subject to judicial review.

		The cost-splitting and related terms contained in paragraph 10 are collateral to the purpose of the contract. The Court hereby severs the following language in paragraph 10: “[A]ny fees to arbitrate - including but not limited to the administration fee and arbitrator’s hourly rate - shall be split by Employer and Employee” “Employee represents and warrants that she is not financially challenged, not in poverty as set forth in Code Civ. Proc., § 1284.2, and is financially capable to afford her own fees and expenses arising from arbitration as set forth in this paragraph, and if she becomes financially incapable to afford the fees and costs arising from arbitration as set forth in this paragraph during her course of employment, she will inform the Employer so that the parties would be able to renegotiate the terms of this Arbitration Agreement and/or this paragraph.” “Notwithstanding the foregoing, in the event that at the outset of arbitration proceeding, the arbitrator decides that one party must pay all the arbitration fees and/or that the fee split is not fair, should be disregarded, and/or is unconscionable, then each party has the option to immediately terminate arbitration and proceed with seeking remedies in the state court without any penalties pursuant to California Code of Civil Procedure Sections 1281.97 et. seq., including California Code of Civil Procedure Section 1281.98 and/or any applicable then current rules or regulations, as if the arbitration proceedings never existed.” The Court otherwise finds the parties’ arbitration agreement enforceable. The motion is therefore GRANTED, subject to severance of unconscionable provisions, and the proceedings STAYED pending arbitration. <i>Counsel for Defendant shall provide notice of this ruling.</i>
9.	Clinician Home Health Services Inc. v. Tamayo 24-1372698	The Motion to be Relieved as Counsel, filed on 5/20/26 by Attorney William J. Mall III of the Law Office of William J. Mall, III, as to the representation of Defendant MacGroup and Associates, LLC, is CONDITIONALLY GRANTED. The Motion is primarily in order and unopposed. However, the proposed order needs revisions [check box 5(a); fill in re IDC for Box 7; update trial date and time for Box 9]. The Motion is therefore CONDITIONALLY GRANTED, subject to submission of a revised proposed order. Relief will be effective upon filing of a proof of service of the signed order upon the client. <i>Moving counsel is to give notice of this ruling.</i>
10.	McQuade v. City of Anaheim	Before the Court is a motion to strike filed by defendants City of Anaheim (the City) and Rebecca Cherene (Cherene)(collectively,